TOWN OF WAREHAM

MEMORIAL TOWN HALL
54 MARION ROAD
WAREHAM, MA 02571

CONSERVATION COMMISSION

MINUTES – March 19, 2025

I. Call to order by the Chair

II. Roll Call

Present: Chairperson, Sandy Slavin,
Vice Chairperson, Kwame Bartie
Clerk, Autumn Wood
Michael Mercier, Member
Scott Soby, Associate Member
Joseph Still, Member
Paulajean O'Neill, Member (via Zoom)

Absent: Jessica Parr, Member
Conservation Agent: Christine Santos was present.
Land Use Coordinator: Josh Faherty was also present.

All parties are sworn in prior to testifying.

III. Public Hearings: 6:00 PM

Request for Determination of Applicability (RDA)

1. Isabella Cheung, 10 Knowles Ave – RDA 78 – applicant is proposing to upgrade a failed septic system, install a new septic tank, and remove an existing cesspool in Land Subject to Coastal Storm Flowage

Ms. Wood read the legal advertisement for the record.
Motion: Ms. Wood motioned to open the public hearing. Seconded by Mr. Mercier.
Vote: 6-0-0.
Motion: Ms. Wood motioned to table the hearing. Seconded by Mr. Mercier.
Vote: 6-0-0.
Motion: Ms. Wood motioned to reopen the public hearing. Seconded by Mr. Mercier.
Vote: 6-0-0.
Present before the board: Nyles Zager, from Zenith Engineering
Mr. Zager reviewed the project for a new septic system. He said they are triggered for a board of health regulation. They are proposing a silt sock in the rear in case of erosion.
Mr. Still referenced a shed that has a portion within the 100' buffer zone and looks like it needs to be taken down. Mr. Zager stated there was no intention of taking it down at this time.
Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. Vote: 6-0-0.
Ms. Santos recommended an approval with a negative 2 and negative 6.
Motion: Ms. Wood motioned to move the recommendation. Seconded by Mr. Mercier.
Vote: 6-0-0.

Notice of Intents (NOI)

1. **HQV Homes LLC, 37 Pine Lake Dr - NOI 117 – This NOI is for work conducted without a permit. Work involves expansion and renovation of a dwelling, steps and deck and applicant is proposing to permit a seasonal**

dock in Land Under Water, and buffer zone to Spectacle Pond and inland bank.

Ms. Wood read the legal advertisement for the record.
Motion: Ms. Wood motioned to open the hearing. Seconded by Mr. Bartie. **Vote:** 4-0-0.
Present before the board: Brad Bertolo, JC Engineering
Mr. Bertolo reviewed the project stating that there was work done without a permit. He stated the homeowner did some work on the property without permits that included removal of decks and an addition that was added. He reviewed the work that was done. He stated they also removed trees with the stumps still present. He said they are proposing to mitigate with trees in the back and edge of the retaining wall, 3' strip for ground cover in that area. He explained the dock they are looking to permit there.

Board members asked about the ratio of trees to the mitigation plan. Discussion ensued.

Ms. Santos asked about the dock and chapter 91. Mr. Bertolo stated they would probably have to apply for one.
Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.
Ms. Santos recommended a standard order of conditions with a Chapter 91 license for the dock. Seconded by Mr. Mercier. **Vote:** 6-0-0.

After the vote, Ms. Slavin stated they forgot to issue the fines for work done without permits.

Mr. Faherty stated he feels as though it would be tough to fine as it was the previous owner. He said there is a mitigation plan.

2. William Churchill, 18 Bass Cove Lane – NOI 118 – applicant is proposing to construct a single-family dwelling, deck, carport, driveway, Title V septic system, and associated utilities and grading in buffer zone to Coastal Bank.
Ms. Wood read the advertisement for the record.
Motion: Ms. Wood motioned to open the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.
Present before the board: Brad Bertolo, JC Engineering
Mr. Bertolo reviewed the project to construct a single-family dwelling. He stated there was a saltmarsh and 100' buffer zone into the property. He said they are proposing tree clearing.

Commission members requested drywells added to the plans.

Via the public, Myron Lewis, 19 Bass Cove Lane shared his concerns about the road and very little access with one or more vehicles on the road. He offered other suggestions to reaching the construction site. Deanne Rosenberg said that they need emergency access to their house if needed.
George Fardy shared concerns of the road as well.
Ms. Slavin stated that conditions would be made for turn-outs at the construction site.

Ms. Santos stated concerns of the road as well but not under Conservation purview. Ms. Slavin stated they could condition to repair the road to its existence currently.
Mr. Soby asked that they condition to repair the road if it goes into disrepair as they are building.

Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0

Ms. Santos reviewed the list of conditions. She recommended approval with the Standard order of conditions with drywells to be installed, all construction vehicles to be on site instead of on the road; all turn around at the construction site; to provide an updated plan with the drywells; all roads repaired during construction to maintain access for residents and emergency vehicles as needed, and to previous status after the project, and a $200 fine for any truck found blocking the roadway per occurrence.

Motion: Ms. Wood moved the recommendation. Seconded by Mr. Mercier. **Vote:** 6-0-0.

3. Lupa LLC, 46 Winship Ave – NOI 119 – applicant is proposing to repair a sewall and replace a support to a pier in Coastal Beach, Coastal Bank and Land Subject to Coastal Storm flowage.
Ms. Wood read the advertisement for the record.
Motion: Ms. Wood motioned to open the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.
Ms. Santos stated they requested a continuance as DMF wants to review.
Motion: Ms. Wood motioned to continue NOI 119 to April 2, 2025. Seconded by Mr. Mercier. **Vote**: 6-0-0.

IV. Continued Public Hearings: 6:30 PM

Request for Determination of Applicability (RDA)

1. Robert Comeau, 9 Fifteenth St – RDA-63 – applicant is proposing to replace broken steps in buffer zone to Coastal Bank and buffer zone to Coastal Beach. **Cont. 5/7.**
2. Paul Somers, 25 Oak St – RDA-70 – applicant is proposing to remove two trees in buffer zone to Coastal Beach. **Cont. 3/19.**

Present before the board: Paul Athanasiou and Paul Somers
Mr. Athanasiou stated they wanted to remove two hazardous trees, by Walnut Tree Service with a crane. There is no intention for other trees to be removed.
Committee members shared concern that trees should be planted to mitigate these coming down.
Mr. Faherty stated they are seeing this today as this is such a small lot and he recommends a tree be planted, wherever it makes sense to be put on the lot.

Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.
Ms. Santos recommended a negative 3 and negative 6 with the replacement of one tree and to keep the stumps.

Motion: Ms. Wood motioned to approve with a negative 3 and negative 6, replace a tree and keep the stumps. Seconded by Mr. Mercier. **Vote:** 6-0-0.

Notice of Intents (NOI)

1. Russel McKinnon, 28 Nelson St – NOI-104 – applicant is proposing to raze, relocate, and rebuild an existing house within, and in buffer zone to Bordering Vegetated Wetlands, Land Subject to Coastal Storm Flowage, and buffer zone to

Salt Marsh.

Present before the board: Attorney Jillian Morton, Bill Bachant and Jeff Youngquist
Attorney Morton reviewed the project as it was before them about a year ago. She explained the scenario to the commission, and they are looking for a resolution. She explained that the house, which has been there since 1930, is on a paper road, and they are trying to find a happy medium.

Via Zoom, Mr. Faneuf from Ecosystem Solutions reviewed his report from January 27, 2025. He said that this is a raze and new build. He stated DMF has also submitted comments and objections to the project. The house is in the BVW.

Attorney Motion reviewed their proposition and reviewed plans revised for September 16, 2024.

Ms. Slavin stated there was a letter from DMF (Division of Marine and Fisheries) sent on December 4, 2024, that stated they didn't support the construction of a new home.

Attorney Morton stated they could keep it where it is and reconstruct it.

Mr. Soby read into the public record, the conclusion of the report submitted by ESI, Ecosystem Solutions; dated January 27, 2025.

Attorney Morton stated they have plans with the home left in the same spot.
Discussion ensued.

Mr. Faneuf stated that the DEP mentioned the shading impacts in one of their comments. He stated the September 16, 2024 plan is unapprovable as presented.

Motion: Ms. Wood motioned to continue with a revised plan to April 16, 2025. Seconded by Mr. Mercier. **Vote:** 6-0-0.

2. **0MSR Wareham Solar 1, LLC, 0 Maple Springs Rd – NOI-112** – applicant is proposing to install and construct a ±12.5 MW DC±/5 MW AC ground-mounted solar photovoltaic array system and associated battery energy storage system in buffer zone to Bordering Vegetated Wetlands, and buffer zone to Inland Bank.

Present before the board: Stacy Minihane of Beals and Thomas, Inc. and Eric Weinstein of New Leaf Energy.
Ms. Minihane reviewed the supplemental documents that were forwarded to the Conservation office. She stated there were no design changes from comments reviewed by their peer reviewer. She reviewed the supplemental response letters and their dates.

Mr. Still reviewed his concerns of the panels having PFAS and would like to see proof documents that the solar panels don't have PFAS on/in them. Ms. O'Neill also agreed with Mr. Still in confirming that the panels will be PFAS free. She asked who would be certifying that the panels were PFAS free.

The applicant reviewed the battery storage.

Greg Sampson, Attorney for the project. Attorney Sampson stated they submitted materials that stated these materials are not a leaching source. He said they can submit updated information that the panels are PFAS free when they are ready to build.

Dean Smith from New Leaf Energy was also at the table and stated the materials used in solar panels are PFAS free. He said they are happy to agree with any conditions to confirm.

Via Zoom, Mark Cacciolfi stated he opposes this project. He said that New Leaf is suing the Town of Wareham. Ms. Slavin asked him to keep to the topic and interest of the Conservation Commission. He continued with his comments.

Ms. Slavin stated they asked Andrew Cunningham, Water Superindent from the Wareham Water District to comment and he sent an email dated February 7, 2024 that he sees no direct impact on the water source.

Mr. Soby asked if there could be an executive summary pulled from the 360 something page stormwater report to add to their website for public view. Ms. Minihane stated there is a summary included they could use. She stated their peer reviewer did a review and had no comment.

Via Zoom, Amy Tamagini commented that new solar needs to be put on roofs versus cutting forests.

Resident, Samantha, asked about the number of acres and clear-cutting that would be done.

The applicant reviewed the waivers they were requesting.
Mr. Faherty reviewed the questions that the Commission may want answered before they make a decision.

Ms. Slavin stated there are a few conditions already and those included, Certification that panels are PFAS free and specifications when the panels are before the time of construction and summary of water information for the public to read. Mr. Faherty reviewed additional conditions that should be added and recognized work within the 50'. Refueling of the vehicles out of any jurisdiction area and bi-weekly inspection of erosion controls and replacement as necessary.

Ms. Minihan stated there is monitoring that takes place from the NPDESCGP (National Pollution Discharge Elimination System Construction General Permit) that require every 14 days.

Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.

Mr. Faherty stated he would draft an order of conditions that can be reviewed by the commission as well as the applicant for their next meeting.

Motion: Ms. Wood motioned to continue the application to discuss the order of conditions and vote for this project on April 2, 2025. Seconded by Mr. Mercier. **Vote:** 6-0-0.

3. Warren Pyne, 7 Nobska Way-NOI 115 – applicant is proposing 60 total yards of beach nourishment on Coastal Beach, Coastal Bank and in Land Subject to Coastal Storm Flowage.

Present before the board: Gretchen & Warren Pyne.
Mr. Pyne stated they were returning because a mistake had been made on the notification to the abutters.

Via Zoom, Diane Blondin commented that the notice to abutters didn't mention the right of way. She asked what type of oversight or review would be done with this sand dump and how many trucks would it be.

Mr. Pyne stated the 20 yards would be done at the beginning of the season.
Ms. Slavin stated they could condition that Mr. Pyne would contact the conservation agent who would go out and review.

Mr. Soby asked for an additional condition of no more than 20 yards in any calendar year.

Heather Grove, stated the notice that what was staked out was half of the right of way and stated that wasn't what was asked for.

Mr. Soby explained that half of the right of way is on the Pyne's property so that would be correct. Ms. Grove argued it was a right of way. Discussion ensued.

Motion: Ms. Wood motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 6-0-0.
Ms. Santos recommended the standard order of conditions along with conditions of the work to be reviewed by the agent, no more than 20 yards of sand per calendar year; no more than 4" of sand being placed in the right of way and no spreading of sand on the vegetation.

Motion: Ms. Wood moved the recommendation to approve with the standard order of conditions and the conditions as discussed: Work to be reviewed by the agent; no more than 20 yards of sand per calendar year; no more than 4" of sand being placed in the righ of way and no spreading of sand on the vegetation. Seconded by Mr. Mercier. **Vote:** 6-0-0.

V. Amended Order of Condition Request
VI. Extension Requests
VII. Certificate of Compliance Requests
1. 147 Barker Road – SE076-1687

Motion: Ms. Wood motioned to approve the certificate of compliance. Seconded by Mr. Mercier. **Vote:** 6-0-0.

VIII. Review of Enforcements
IX. Continued Enforcements

X. Report of the Land Use Coordinator
1. 67 Jefferson Shores Road

Mr. Faherty reviewed the six plants that were supposed to be planted. A certificate of compliance was issued. He then reviewed that the plants died, they were pulled out when the property was sold to new owner. He advised the tree arborist is going to plant shrubs at

the location

2. Administrative Approvals

3. Bylaw Revision Update -

4. Workshop – Permits – Certificates of Compliance (COC)

XI. Consent Agenda

1. Review and approve minutes – February 5, 2025 & March 5, 2025

Motion: Ms. Wood motioned to approve February 5, 2025 minutes. Seconded by Mr. Mercier. **Vote:** 6-0-0.

Motion: Ms. Wood motioned to approve March 5, 2025 minutes. Seconded by Mr. Still. **Vote**: 5-0-1; with Mr. Mercier abstaining as he was absent.

2. Bills

3. Appointments, Interviews & Reappointments

XII. Any other Conservation Commission business not reasonably anticipated 48 hours prior to the posting of this meeting.

In other business, Mr. Still advised there was a clean up planned on the weekend on Doty Street, all invited.

XIII. Adjournment

Motion: Ms. Wood motioned to adjourn at 8:58 p.m. Seconded by Mr. Mercier.Vote: 6-0-0 Meeting adjourned at 8:58 p.m.

Documents Reviewed:
10 Knowles Ave
37 Pine Lake Dr
18 Bass Cove Lane
46 Winship Ave
25 Oak Street

Attest: L. Wood clerk, Date: 16 APR 2025